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AMAZON.COM SERVICES LLC

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

MURCHANT WADE, an individual, et al., and on behalf of all similarly situated employees of Defendants in the State of California

Plaintiffs,

vs.

AMAZON.COM SERVICES LLC, a Delaware Limited Liability Company; and DOES 1 through 50.

Defendants.

Case No. _____

[Fresno Superior Court Case No. 26CECG00786]

DEFENDANT AMAZON.COM SERVICES LLC'S NOTICE OF REMOVAL OF COMPLAINT

[28 U.S.C. §§ 1332, 1441, 1446]

TO THE UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF CALIFORNIA AND TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE THAT pursuant to 28 U.S.C. §§ 1332, 1441, and 1446, Defendant Amazon.com Services LLC ("Amazon") hereby removes the above-entitled action from the Superior Court of the State of California for the County of Fresno ("Fresno Superior Court") to the United States District Court for the Eastern District of California ("Eastern District"). In support of removal, Amazon states the following:

I. SUMMARY OF RELEVANT PROCEDURAL HISTORY

1. On December 19, 2024, Plaintiff filed an action in the Fresno Superior Court against Amazon and a third-party service provider named Delivery Response: On-Time Parcel, LLC, Case No. 24CECG05530 ("*Wade I*"), alleging a putative class claim for violations of the California Fair Chance Act.

2. After being served with the *Wade I* Complaint, Amazon filed a demurrer on March 12, 2025. Following the filing of Amazon's Demurrer in the *Wade I* Action, Plaintiff filed a First Amended Complaint on May 1, 2025, thereby mooting Amazon's Demurrer.

3. Thereafter, Amazon filed a Demurrer to Plaintiff's First Amended Complaint in the *Wade I* action. On August 27, 2025, the Fresno Superior Court entered an order sustaining Amazon's demurrer, dismissing Plaintiff's claims against Amazon with prejudice, and entering judgment in Amazon's favor.

4. On February 13, 2026, Plaintiff filed this nearly identical lawsuit in the Fresno Superior Court, Case No. 26CECG00786. In this action, which Amazon now removes to the Eastern District, Plaintiff alleges a single claim for relief against Amazon for alleged violations of the California Fair Chance Act. This claim is alleged on a putative class basis.

5. On February 26, 2026, Plaintiff served the Summons, Complaint and Civil Case Cover Sheet on Amazon. True and correct copies of these documents are attached hereto as **Exhibit 1**.

6. On February 23, 2026, the Fresno Superior Court issued a Notice of Case Management Conference and Assignment of Judge for All Purposes, a true and correct copy of

which is attached hereto as **Exhibit 2**.

7. **Exhibits 1 – 2** constitute the entirety of the process, pleadings, and orders that have been served on or by Amazon in this case to date.

II. THIS REMOVAL IS TIMELY.

8. Under 28 U.S.C. § 1446(b)(2)-(3), a case may be removed during the first 30 days after the defendant receives, through service or otherwise, a copy of the initial pleading setting forth the claim for relief upon which such action or proceeding is based.

9. Here, Plaintiff served Amazon with the Summons and Complaint on February 25, 2026. This Removal is filed on or before March 27, 2026. Accordingly, this removal is timely filed.

10. No previous Notice of Removal has been filed or made with this Court for the relief sought herein.

III. THIS COURT HAS DIVERSITY JURISDICTION UNDER 28 U.S.C. § 1332(a).

11. This is a civil action of which the Court has original jurisdiction pursuant to 28 U.S.C. §1332 (diversity jurisdiction), and it is one which Amazon may remove pursuant to 28 U.S.C. §1441. The amount in controversy for Plaintiff's claims exceeds the sum or value of $75,000, exclusive of interest and costs, and is between citizens of different states.[1] Defendant Amazon is a citizen of Washington and Delaware.

12. Even when a putative class action is pled, a Defendant may properly remove on the basis of diversity jurisdiction under the requirements of 28 U.S.C. § 1332(a). *See, e.g.*, *Watts v. Sagora Senior Living, Inc.,* 2024 WL 4752443, at *2 n.2 (E.D. Cal. Nov. 12, 2024); *Weaver v. Amentum Servs., Inc.,* 2022 WL 959789, at *6 (S.D. Cal. Mar. 30, 2022).

///

[1] This Notice of Removal discusses the nature and amount of damages placed at issue by Plaintiff's Complaint. Amazon's references to specific damage amounts and citations to comparable cases are provided solely for establishing that the amount in controversy exceeds the jurisdictional minimum. Amazon maintains that Plaintiff's claims are without merit and Amazon is not liable to Plaintiff. No statement or reference contained herein shall constitute an admission of liability or a suggestion that Plaintiff will or actually could recover any damages based upon the allegations contained in the Complaint or otherwise. "The amount in controversy is simply an estimate of the total amount in dispute, not a prospective assessment of [a defendant's] liability." *Lewis v. Verizon Commc'ns, Inc.*, 627 F.3d 395, 400 (9th Cir. 2010).

A. Complete Diversity of Citizenship Exists.

13. A case may be heard in federal court under diversity jurisdiction if there is complete diversity, *i.e.*, all plaintiffs are diverse from all defendants. 28 U.S.C. § 1332(a). A defendant may remove an action to federal court under 28 U.S.C. § 1332, provided that no defendant is a citizen of the same state in which the action was brought or of the same state in which the plaintiff is a citizen. 28 U.S.C. § 1441(a), (b). Here, all requirements are met because Plaintiff is a citizen of California and Amazon is a citizen of Washington and Delaware.

i. Plaintiff Is a Citizen of California.

14. "An individual is a citizen of the state in which she is domiciled[.]" *Boon v. Allstate Ins. Co*., 229 F. Supp.2d 1016, 1019 (C.D. Cal. 2002) (citing *Kanter v. Warner-Lambert Co*., 265, F.3d 853, 857 (9th Cir. 2001)). For purposes of diversity of citizenship jurisdiction, citizenship is determined by the individual's domicile at the time that the lawsuit is filed. *Armstrong v. Church of Scientology Int'l*, 243 F.3d 546, 546 (9th Cir. 2000) (citing *Lew v. Moss*, 797 F.2d 747, 750 (9th Cir. 1986)). Continuing residence creates a presumption of domicile. *Washington v. Hovensa, LLC*, 652 F.3d 340, 345 (3rd Cir. 2011); *State Farm Mut. Auto Ins. Co. v. Dyer*, 19 F.3d 514, 519 (10th Cir. 1994).

15. Plaintiff alleges that he "is a natural person and a citizen of the state of California." *See* Ex. 1 ("Compl.") ¶ 1. Plaintiff does not allege he was a citizen of any state other than California, and there is no indication that he is, or was, a citizen of states other than California at any relevant time. Thus, Plaintiff was domiciled in the State of California at all relevant times and is a citizen of California for purposes of diversity jurisdiction in this matter.

ii. Amazon Is a Citizen of Washington and Delaware.

16. For purposes of diversity jurisdiction, the citizenship of a limited liability company is determined by looking at the citizenship of each of its members. *Johnson v. Columbia Props. Anchorage, LP*, 437 F.3d 894, 899 (9th Cir. 2006). Here, Amazon.com Services LLC[2] only has one member – Amazon.com Sales, Inc.

[2] Amazon.com Services LLC is organized under the laws of Delaware and has its principal place of business in Seattle, Washington.

17. For purposes of diversity, under 28 U.S.C. § 1332, "a corporation shall be deemed to be a citizen of every State and foreign state by which it has been incorporated and of the State or foreign state where it has its principal place of business." 28 U.S.C. § 1332(c)(1). The "principal place of business" for the purpose of determining diversity subject matter jurisdiction refers to "the place where a corporation's officers direct, control, and coordinate the corporation's activities . . . [I]n practice it should normally be the place where the corporation maintains its headquarters—provided that the headquarters is the actual center of direction, control, and coordination, i.e., the 'nerve center,' and not simply an office where the corporation holds its board meetings . . ." *See Hertz Corp. v. Friend*, 559 U.S. 77, 92-93 (2010).

18. As a corporation, for diversity purposes, Amazon.com Sales, Inc. is a citizen of Delaware and Washington because it is a Delaware corporation with its corporate headquarters and principal place of business in Washington. *See* 28 U.S.C. § 1332(c)(1).

19. Thus, at all relevant times, Amazon's citizenship has been Delaware and Washington, ***never*** California.

iii. Doe Defendants Are Irrelevant for Purposes of Removal.

20. The Complaint also names as defendants DOES 1 through 100. However, the citizenship of fictitious "Doe" defendants, however, is disregarded for removal purposes. 28 U.S.C. § 1441(a); *Newcombe v. Adolf Coors Co.*, 157 F.3d 686, 690-91 (9th Cir. 1998) (holding that for removal purposes, the citizenship of defendants sued under fictitious names shall be disregarded); *see also Soliman v. Philip Morris*, Inc., 311 F.3d 966, 971 (9th Cir. 2002).

B. <u>The Amount-In-Controversy Requirement Is Satisfied.</u>

21. Although Plaintiff does not quantify his purported damages in the Complaint, he seeks to recover damages including but not limited to, loss of employment opportunities, lost wages, emotional distress, penalties, and attorneys' fees and costs. Compl. ¶¶ 3, 24, 45.

22. While Amazon denies any and all liability to Plaintiff, based on a conservative good faith estimate of the value of the alleged damages in this action, the amount in controversy for Plaintiff's claims exceeds the sum or value of $75,000, exclusive of interest and costs.

23. "[T]he amount in controversy includes all relief claimed at the time of removal to

which the plaintiff would be entitled if [he] prevails." *Chavez v. JPMorgan Chase & Co.*, 888 F.3d 413, 414-15 (9th Cir. 2018); *Campbell v. Hartford Life Ins. Co.*, 825 F. Supp. 2d 1005, 1008 (E.D. Cal. 2011) (recognizing diversity statute confers jurisdiction over entire action, not just specific claims alleged in complaint, and, therefore, claims of a plaintiff are aggregated in order to satisfy amount in controversy).

24. The "defendant's notice of removal need include only a plausible allegation that the amount in controversy exceeds the jurisdictional threshold." *Dart Cherokee Basin Operating Co., LLC v. Owens*, 574 U.S. 81, 90 (2014). "[D]efendants do not need to prove to a legal certainty that the amount in controversy requirement has been met. Rather, defendants may simply allege or assert that the jurisdictional threshold has been met." *Id*. (quoting H.R. Rep. No. 112-10, p. 16 (2011)).

i. Plaintiff's Claim for Lost Wages Alone Puts Over $75,000 in Controversy.

25. Plaintiff alleges that he is entitled to lost wages as a result of Amazon's allegedly unlawful conduct. Compl. ¶¶ 31, 43, 51, 59.

26. Plaintiff does not allege the specific date on which he was supposedly denied employment with Amazon. However, Plaintiff filed a complaint with the California Civil Rights Department on December 19, 2023, which made reference to the alleged unlawful conduct that forms the basis of his allegations in this action and alleges that he was denied employment on November 1, 2023.

27. Taking November 1, 2023, as the date on which Plaintiff was allegedly denied employment with Amazon, approximately 125 workweeks have passed since then.

28. From November 1, 2023 through the present date, the California minimum wage has varied between $15.50 to $16.90. Assuming that Plaintiff would have worked 40 hours per week on average, and would have been paid an average rate of $16 per hour, his alleged lost wages would be approximately **$80,000** ($16/hour x 40 hours/week x 125 weeks).

29. This figure does not include any alleged lost wages that might accrue through the date of trial. *See, e.g.*, *Melendez v. HMS Host Family Rest., Inc.*, 2011 WL 3760058, at *2 (C.D.

Cal. Aug. 25, 2011) (including projected lost wages from alleged adverse employment action to anticipated date of judgment in amount-in-controversy calculation); *Rivera v. Costco Wholesale Corp.*, 2008 WL 2740399, at *3 (N.D. Cal. July 11, 2008) (considering "lost wages and benefits [that] may accrue" after removal); *Celestino v. Renal Advantage Inc*., 2007 WL 1223699, at *4 (N.D. Cal. Apr. 24, 2007) (including future lost income in amount-in-controversy calculation).

30. Given that Plaintiff's Complaint puts at least $80,000 in alleged lost wages at issue, Plaintiff's lost wages claim by itself places more than $75,000 in controversy.

ii. Purported Emotional Distress Damages Further Increase the Amount in Controversy.

31. In determining whether the jurisdictional minimum is met, courts include emotional distress damages as a part of all recoverable damages. *Hunt v. Washington State Apple Advertising Comm'n*, 432 U.S. 333, 347-48 (1977); *Galt G/S v. JSS Scandinavia,* 142 F. 3d 1150, 1155-56 (9th Cir. 1998).

32. Although Plaintiff's alleged emotional distress damages are not specifically defined, plaintiffs alleging emotional distress as a result of unlawful employment-related actions have sought in excess of $75,000 for such damages for many years. *Jackson v. CEVA Logistics*, 2020 WL 1967208, at *9 (N.D. Cal. Apr. 24, 2020) (denying motion to remand and recognizing prior jury awards of emotional distress damages in FEHA cases ranging from $100,000 to $1,300,000); *Campbell v. Nat'l Passenger R.R. Corp*., 2009 WL 692094 (N.D. Cal. 2009) (awarding $120,000 in non-economic damages); *Silo v. CHW Med. Found.*, 86 Cal. App. 4th 947, 955 (2001) (jury award in excess of $75,000 in non-economic damages was upheld in a wrongful termination lawsuit); *Keiffer v. Bechtel Corp.*, 65 Cal. App. 4th 893, 895 (1998) (California Court of Appeal upheld jury award in excess of $75,000 for emotional distress damages in a single-plaintiff discrimination case); *Satrap v. Pac. Gas & Elec. Co.*, 42 Cal. App. 4th 72, 76 (1996) (jury award in excess of $75,000.00 in non-economic damages was upheld).

33. Like the plaintiffs in these lawsuits, Plaintiff alleges that he has suffered emotional distress. Compl. ¶ ¶ 3, 24, 45.

34. Accordingly, it is reasonable to assume, solely for the purposes of establishing the

amount in controversy, that the Complaint puts at issue in excess of **$75,000** for alleged emotional damages alone.

iii. Attorneys' Fees Further Increase the Amount in Controversy.

35. Plaintiff also seeks to recover an unspecified amount of attorneys' fees. Compl., ¶ 3, 24, 45. Attorneys' fees also considered for purposes of calculating the amount in controversy. *Guglielmino v. McKee Foods Corp*., 506 F.3d 696, 698 (9th Cir. 2007) (attorneys' fees are included in the calculation of the amount in controversy under 28 U.S.C. § 1332(a)); *Galt G/S v. JSS Scandinavia*, 142 F.3d 1150, 1155-56 (9th Cir. 1998) ("We hold that where an underlying statute authorizes an award of attorneys' fees, either with mandatory or discretionary language, such fees may be included in the amount in controversy."); *Sanchez v. Wal-Mart Stores, Inc*., 2007 WL 1345706, at *2 (E.D. Cal. May 8, 2007) ("Attorney's fees, if authorized by statute or contract, are also part of the calculation").

36. The reasonable estimation of attorneys' fees for purposes of removal is not limited to only those fees incurred as of the time of removal; rather, it is proper to consider future attorneys' fees that would reasonably accrue through the time the action is resolved. *Fritsch v. Swift Transp. Co. of Arizona, LLC*, 899 F.3d 785, 794 (9th Cir. 2018).

37. Here, Plaintiff's Complaint alleges claims under the Fair Chance Act. Under the relevant statutory framework, a "prevailing party" is entitled to recover reasonable attorneys' fees on this claim. Cal. Gov. Code § 12965(c)(6) ("[T]he court, in its discretion, may award to the prevailing party reasonable attorney's fees and costs, including expert witness fees"). Should Plaintiff prevail in this action, he would be entitled to recover his attorneys' fees, which further increases the amount in controversy.

38. Federal Courts in the Eastern District have held that hourly rates of $400 – $650 are reasonable in cases arising under California lawsuits relating to employment discrimination. *See, e.g., Goodson v. Cnty. of Plumas,* 2024 WL 99847, at *4 (E.D. Cal. Jan. 9, 2024) (holding that an attorney's rate of $650 per hour was justified for an experienced attorney representing plaintiff in a employment discrimination action, and that rates of $400-500 were justified for less experienced counsel).

39. For the purposes of calculating the amount of attorneys' fees in controversy, Defendant makes the conservative assumption that Plaintiff's counsel's rate is at least $400 per hour and that counsel will spend at least 100 hours of work litigating Plaintiff's individual claim through trial. Accordingly, the amount of attorneys' fees incurred by Plaintiff in connection with prosecuting this action is likely to increase the amount in controversy by at least **$40,000** ($400/hour x 100 hours).

iv. Summary of Amount Placed in Controversy

40. Plaintiff places at least $205,000 in controversy through his individual claims for lost wages, emotional distress, and attorneys' fees. This amount far exceeds the requisite $75,000, and the amount in controversy requirement therefore is satisfied.

II. OTHER PREREQUISITES FOR REMOVAL HAVE BEEN SATISFIED

41. This action was originally filed in the Superior Court for the County of Fresno. Initial venue is therefore proper in this district, pursuant to 28 U.S.C. § 1441(a), because it encompasses the county in which this action has been pending.

42. Amazon will promptly serve Plaintiff with this Notice of Removal and will promptly file a copy of this Notice of Removal with the Superior Court of the State of California for the County of Fresno, as required under 28 U.S.C. § 1446(d).

III. CONCLUSION

43. Based on the foregoing, Amazon requests that this action be removed from the Superior Court of the State of California for the County of Fresno to the United States District Court for the Eastern District of California, and that all future proceedings in this matter take place in the United States District Court for the Eastern District of California.

44. If any question arises as to the propriety of the removal of this action, Amazon respectfully requests the opportunity to present a brief and oral argument in support of its position that this case is removable.

Dated: March 27, 2026

MORGAN, LEWIS & BOCKIUS LLP

By */s/ Andrew P. Frederick*
Andrew P. Frederick
Dominic D. Sbrocca

Attorneys for Defendant
AMAZON.COM SERVICES LLC

EXHIBIT 1

SUM-100

SUMMONS
(CITACION JUDICIAL)

FOR COURT USE ONLY
(SOLO PARA USO DE LA CORTE)

E-FILED
2/23/2026
Superior Court of California
County of Fresno
By: T. Espinoza, Deputy

NOTICE TO DEFENDANT:
(AVISO AL DEMANDADO):
AMAZON.COM SERVICES, LLC., a Delaware Limited Liability Company; DOES 1 through 50,

YOU ARE BEING SUED BY PLAINTIFF:
(LO ESTÁ DEMANDANDO EL DEMANDANTE):
MURCHANT WADE, an individual, et al., and on behalf of all similarly situated employees of Defendants in the State of California,

NOTICE! You have been sued. The court may decide against you without your being heard unless you respond within 30 days. Read the information below.

You have 30 CALENDAR DAYS after this summons and legal papers are served on you to file a written response at this court and have a copy served on the plaintiff. A letter or phone call will not protect you. Your written response must be in proper legal form if you want the court to hear your case. There may be a court form that you can use for your response. You can find these court forms and more information at the California Courts Online Self-Help Center (*www.courtinfo.ca.gov/selfhelp*), your county law library, or the courthouse nearest you. If you cannot pay the filing fee, ask the court clerk for a fee waiver form. If you do not file your response on time, you may lose the case by default, and your wages, money, and property may be taken without further warning from the court.

There are other legal requirements. You may want to call an attorney right away. If you do not know an attorney, you may want to call an attorney referral service. If you cannot afford an attorney, you may be eligible for free legal services from a nonprofit legal services program. You can locate these nonprofit groups at the California Legal Services Web site (*www.lawhelpcalifornia.org*), the California Courts Online Self-Help Center (*www.courtinfo.ca.gov/selfhelp*), or by contacting your local court or county bar association. **NOTE:** The court has a statutory lien for waived fees and costs on any settlement or arbitration award of $10,000 or more in a civil case. The court's lien must be paid before the court will dismiss the case.
¡AVISO! Lo han demandado. Si no responde dentro de 30 días, la corte puede decidir en su contra sin escuchar su versión. Lea la información a continuación.

Tiene 30 DÍAS DE CALENDARIO después de que le entreguen esta citación y papeles legales para presentar una respuesta por escrito en esta corte y hacer que se entregue una copia al demandante. Una carta o una llamada telefónica no lo protegen. Su respuesta por escrito tiene que estar en formato legal correcto si desea que procesen su caso en la corte. Es posible que haya un formulario que usted pueda usar para su respuesta. Puede encontrar estos formularios de la corte y más información en el Centro de Ayuda de las Cortes de California (www.sucorte.ca.gov), en la biblioteca de leyes de su condado o en la corte que le quede más cerca. Si no puede pagar la cuota de presentación, pida al secretario de la corte que le dé un formulario de exención de pago de cuotas. Si no presenta su respuesta a tiempo, puede perder el caso por incumplimiento y la corte le podrá quitar su sueldo, dinero y bienes sin más advertencia.

Hay otros requisitos legales. Es recomendable que llame a un abogado inmediatamente. Si no conoce a un abogado, puede llamar a un servicio de remisión a abogados. Si no puede pagar a un abogado, es posible que cumpla con los requisitos para obtener servicios legales gratuitos de un programa de servicios legales sin fines de lucro. Puede encontrar estos grupos sin fines de lucro en el sitio web de California Legal Services, (www.lawhelpcalifornia.org), en el Centro de Ayuda de las Cortes de California, (www.sucorte.ca.gov) o poniéndose en contacto con la corte o el colegio de abogados locales. AVISO: Por ley, la corte tiene derecho a reclamar las cuotas y los costos exentos por imponer un gravamen sobre cualquier recuperación de $10,000 ó más de valor recibida mediante un acuerdo o una concesión de arbitraje en un caso de derecho civil. Tiene que pagar el gravamen de la corte antes de que la corte pueda desechar el caso.

The name and address of the court is:
(El nombre y dirección de la corte es): B.F. Sisk Courthouse

1130 O Street, Fresno, CA 93724-0002

CASE NUMBER:
(Número del Caso): 26CECG00786

The name, address, and telephone number of plaintiff's attorney, or plaintiff without an attorney, is:
(El nombre, la dirección y el número de teléfono del abogado del demandante, o del demandante que no tiene abogado, es):
William D. Becker, Esq., 1147 South Hope Street, Los Angeles, CA 90015, 888-888-9285

DATE: *(Fecha)* 2/23/2026 Clerk, by *(Secretario)* /s/ T. Espinoza , Deputy *(Adjunto)*

(For proof of service of this summons, use Proof of Service of Summons *(form POS-010).)*
(Para prueba de entrega de esta citatión use el formulario Proof of Service of Summons, *(POS-010)).*

[SEAL]

NOTICE TO THE PERSON SERVED: You are served
1. ☐ as an individual defendant.
2. ☐ as the person sued under the fictitious name of *(specify):*
3. ☒ on behalf of *(specify):* AMAZON.COM SERVICES, LLC., a Delaware Limited Liability Company
   under: ☐ CCP 416.10 (corporation) ☐ CCP 416.60 (minor)
   ☐ CCP 416.20 (defunct corporation) ☐ CCP 416.70 (conservatee)
   ☒ CCP 416.40 (association or partnership) ☐ CCP 416.90 (authorized person)
   ☐ other *(specify):*
4. ☐ by personal delivery on *(date):*

Form Adopted for Mandatory Use
Judicial Council of California
SUM-100 [Rev. July 1, 2009]

SUMMONS

Code of Civil Procedure §§ 412.20, 465
www.courts.ca.gov

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E-FILED
2/13/2026 8:00 AM
Superior Court of California
County of Fresno
By: T. Espinoza, Deputy

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Attorneys for Plaintiff,
MURCHANT WADE, individually
and on behalf of others similarly
situated.

SUPERIOR COURT OF THE STATE OF CALIOFRNIA

FOR THE COUNTY OF FRESNO

MURCHANT WADE, an individual, et al., and on behalf of all similarly situated employees of Defendants in the State of California,

Plaintiffs,

v.

AMAZON.COM SERVICES, LLC., a Delaware Limited Liability Company; DOES 1 through 50,

Defendants.

CASE NO.: 26CECG00786

CLASS ACTION COMPLAINT
[CAL. CODE CIV. PROC. § 382]

1. UNLAWFUL INQUIRY AND CONSIDERATION OF PLAINTIFF'S CRIMINAL CONVICTION HISTORY IN VIOLATION OF THE CALIFORNIA FAIR CHANCE ACT, GOVERNMENT CODE § 12952.

-JURY TRIAL DEMANDED-

Plaintiff MURCHANT WADE individually and on behalf of other similarly situated and/or aggrieved applicants of AMAZON.COM SERVICES, LLC and DOES 1 through 50, inclusive, allege as follows:

NATURE OF THE ACTION

1. Plaintiff MURCHANT WADE, individually and on behalf of all others similarly situated, brings this class action under California Code of Civil Procedure § 382, against Defendants AMAZON.COM SERVICES, LLC and DOES 1 through 50, inclusive (hereinafter collectively referred to as "Defendants" or "AMAZON")

2. Plaintiff brings this class action on behalf of all individuals who, within the applicable statute of limitations period, applied for employment with Defendants in California, Defendants unlawfully inquired and considered applicants criminal conviction history (hereinafter "similarly situated applicants" or "Class Members").

3. Plaintiff brings this Collective Action pursuant to the Fair Chance Act of 2018, as amended, Cal. Gov't Code § 12952, et seq. and seek damages including but not limited to, loss of employment opportunities, lost wages, emotional distress and attorneys' fees and costs.

4. Plaintiff is informed and believes, and on that basis alleges that Defendants unlawfully asked individuals who applied for employment with Defendant in California to disclose their criminal conviction history before receiving a conditional offer of employment and were discriminated and denied employment based on their criminal conviction history.

5. Defendants systematic pattern of violations towards Plaintiff and other similarly situated applicants in California include, but are not limited to:

a) Unlawful inquiry into Plaintiff's and Class Member's criminal history before providing conditional offers.

b) Unlawful consideration of Plaintiff's and Class Member's criminal conviction history.

c) Unlawful denial of employment based on past conviction history.

d) Failure to conduct an individualized assessment of whether Plaintiff's and Class Member's conviction history has a direct and adverse relationship with the specific duties of a delivery driver that justified denying them the positions.

6. Plaintiff brings this lawsuit against Defendants seeking restitution, declaratory judgement, injunctive relief, and monetary relief on behalf of himself and all other similarly situated applicants of Defendants in California.

7. Plaintiff reserves the right to name additional representatives.

PARTIES

8. The named Plaintiff, MURCHANT WADE, is a natural person and a citizen of the State of California (hereinafter referred to as "Plaintiff" or "WADE")

9. At all relevant times, Plaintiffs and, on information and belief, other Similarly Situated applicants of Defendants in California, were subject to the same policies, and procedures governing their employment.

10. Defendant AMAZON.COM SERVICES, LLC. (hereinafter referred to as "AMAZON"), is a Delaware Limited Liability Company doing business in California, with its principal place of business in Fresno, California.

11. Defendants' wrongful conduct, as alleged herein, occurred in the County of Fresno and in the State of California.

12. Each fictitiously named Defendant participated in the acts alleged in this Complaint. The true names and capacities of the Defendants named as Does 1 through 50, inclusive, are presently unknown to Plaintiffs. Plaintiffs will amend this complaint, setting forth the true names and capacities of the fictitious Defendants, if and when their true names and capacities are ascertained. Plaintiffs are informed, believe and allege. That each of the fictitious Defendants participated in the acts alleged in this Complaint.

13. Plaintiff is informed and believes that at all relevant times, each Defendant, whether named or fictitious, was the agent, employee, or other person acting on behalf of every

other Defendant, and, in participating in the acts alleged in this Complaint, acted within the scope of such agency or employment and ratified the acts of each other Defendants.

14. Plaintiff is informed and believes that, at all relevant times, each Defendant, whether named or fictitious, exercised control over Plaintiff's and other similarly situated application process.

JURISDICTION AND VENUE

15. Pursuant to Article VI, § 10 of the California Constitution, subject matter jurisdiction is proper in the Superior Court of California, County of Fresno, State of California.

16. This Court has personal jurisdiction over the Defendants because Defendants conduct business in California and because the events or transactions giving rise to this action occurred within California.

17. Pursuant to § 395 of the California Code of Civil Procedure, venue as to each Defendant is proper in the Superior Court of California for Fresno County, because this is where Plaintiff applied for employment, and this is where the wrongful misconduct alleged herein occurred. Defendants operate a delivery center, employ hourly employees, conduct business, and commit Gov't Code violations in Fresno County, and each Defendant is within the jurisdiction of this Court for service of process purposes. The unlawful acts alleged herein have a direct effect on Plaintiff and those similarly situated within the State of California and within Fresno County.

GENERAL ALLEGATIONS

18. Defendant AMAZON owns and operates an E-Commerce website with a Delivery Service Partner program.

19. Defendant AMAZON unlawfully inquired into applicants' criminal conviction history prior to extending a conditional offer to applicants and denied his employment on the basis of the criminal conviction history.

20. Plaintiff is informed and believes that at all times herein mentioned skilled lawyers, employees, and other professionals knowledgeable about California's employment, and personnel practices and the requirements of California law advised Defendants.

21. Plaintiff is informed and believes that Defendants knew or should have known that Ca. Gov't. Code § 12952 prohibited employers from inquiring into applicants' conviction history prior to providing conditional offers to the applicants. The code also prohibits any consideration or denial of employment based on the result of said conviction history. In violation of Ca. Gov't. Code § 12952 Plaintiff and Class Members had to disclose their criminal conviction history and were consequently denied employment.

22. Defendant AMAZON failed to follow the law regarding the use of background screening relating to employment decisions. Pursuant to Ca. Gov't. Code § 12952 (c) (2), Defendant was required to do the following:

a. Make an individualized assessment of whether the applicant's conviction history has a direct and adverse relationship with the specific duties of the job that justify denying the applicant the position. In making assessment described in this paragraph, the employer shall consider all of the following:
    i. The nature and gravity of the offense or conduct
    ii. The time that has passed since the offense or conduct and completion of the sentence;
    iii. The nature of the job held or sought
b. If the employer makes a preliminary decision that the employee's or applicant's conviction history disqualifies the applicant from employment, the employer shall notify person of this preliminary decision in writing. The notification shall contain all of the following:
    i. Notice of the disqualifying conviction or convictions that are the basis for the preliminary decision to rescind the offer;
    ii. A copy of the conviction history report, if any;

iii. An explanation of the person's right to respond to the notice of the employer's preliminary decision before that decision becomes final and the deadline by which to respond. The explanation shall inform the individual that the response may include submission of evidence challenging the accuracy of the conviction history report that is the basis for rescinding the offer, evidence of rehabilitation or mitigating circumstances, or both.

c. The individual shall have at least five business days to respond to the notice provided to the person under paragraph (2) before the employer may make a final decision. If, within the five business days, the applicant notifies the employer in writing that the applicant disputes the accuracy of the conviction history report that was the basis for the preliminary decision to rescind the offer and that the applicant is taking specific steps to obtain evidence supporting that assertion, then the applicant shall have five additional business days to respond to the notice.

d. The employer shall consider information submitted by the individual before making a final decision.

e. If an employer makes a final decision to deny someone a position solely or in part because of the person's conviction history, the employer shall notify the individual in writing of all the following:

i. The final denial or disqualification.

ii. Any existing procedure the employer has for the individual to challenge the decision or request reconsideration.

iii. The right to file a complaint with the department.

23. Defendants failed to perform all of the required acts under Ca. Gov't Code § 12952 (c) (2).

24. Therefore, Plaintiffs bring this lawsuit seeking monetary and injunctive relief against Defendants on behalf of themselves and all Class Members to recover, among other things,

employment opportunities, lost wages, emotional distress, and attorneys' fees, penalties, and expenses.

25. Plaintiff obtained a Right to Sue from California's Civil Rights Department and has thereby exhausted all prerequisite administrative remedies prior to this filing.

CLASS ACTION DESIGNATION

26. Plaintiff re-allege and incorporate by reference the allegations contained in the paragraphs above, as though fully set forth herein.

27. Plaintiffs bring one Cause of Action as a Class Action pursuant to California Code of Civil Procedure section 382 on behalf of themselves and all other applicants of the Defendants, who were affected by Defendants California Government Code violations, as alleged herein.

28. This Plaintiff brings this action on behalf of himself, and all others similarly situated as a Class Action pursuant to § 382 of the Code of Civil Procedure. Plaintiff seeks to represent a class composed of and defined as follows:

> All persons who have applied to work for the Defendants in the State of California, and were required to disclose their criminal conviction history prior to receiving a conditional job offer and were consequently denied employment on the basis of said criminal conviction history in violation of Ca. Gov't Code § 12952.

29. Plaintiffs reserve the right under Rule 1855, subdivision (b), of the California Rules of Court, to amend or modify the Class description with greater specificity or further division into subclasses or limitation to particular issues.

30. This action has been brought and may properly be maintained as a Class Action under Code of Civil Procedure § 382 because there is a well-defined community of interest in the litigation and the proposed Class is easily ascertainable.

A. Numerosity

31. The members of the Class are sufficiently numerous to render the joinder of all their members impracticable. While Plaintiffs have not yet determined the precise number of

members of the class, Plaintiffs are informed and believe, and on that basis allege, that AMAZON currently employs 275,000 delivery service drivers.

A. Commonality

32. Common questions of law and fact exist as to all class Members and predominate over any questions affecting only individual members of the Class. The common question of law and fact that predominate include, but not limited to:

a. Whether the Defendants violated Ca. Gov't Code. §12952 by requiring Plaintiff and the Class Members to disclose their criminal conviction history on their application prior to them a conditional offer.

b. Whether the Defendants violated Ca. Gov't Code. §12952 by considering the Plaintiff and the Class members' criminal conviction history in making the employment decision.

c. Whether the Defendants violated Ca. Gov't Code. §12952 by denying employment to the Plaintiff and the Class members on the basis of their criminal conviction history.

d. The nature and extent of class-wide injury and the measure of damages, restitution penalties, or other monetary relief owed.

C. Typicality

33. Plaintiff's claims are typical of the claims of the Class. Plaintiff and all members of the Class sustained injuries and damages arising out of and caused by Defendants' common course of conduct and policies in violation of laws, regulations that have the force and effect of law and statutes as alleged herein. Plaintiff's claims are thereby representative of and co-extensive with the claims of the class. Plaintiff's claim is typical of the claims of the members of the Class because he was asked to disclose his criminal conviction history, like the other members of the Class, sustained damages and losses arising out of the Defendant's unlawful conduct, which includes, but is not limited to, the following: requiring applicants to disclose their criminal conviction history prior to extending them a conditional offer, and denying employment

to the applicants based on the criminal conviction history. Therefore, Plaintiff and Class was deprive of employment opportunities.

D. Adequacy of Representation

34. Plaintiffs and members of the Class do not have any conflicts of interest with other Class Members, and will prosecute the case vigorously on behalf of the Class. Counsel representing Plaintiff is competent and experienced in litigating large employment class actions. Plaintiff will fairly and adequately represent and protect the interests of the Class Members.

E. Superiority of Class Action

35. A class action is superior to other available means for the fair and efficient adjudication of this controversy. Individual joinder of all Class Members is not practicable, and questions of law and fact common to the Class predominate over any questions affecting only individual members of the Class. Each Class Member has been damaged or suffered injury and is entitled to recovery by reason of Defendants' illegal policies and/or practices including but not limited requiring applicants to disclose their criminal conviction history prior to extending them a conditional offer and denying employment to the applicants based on the criminal conviction history. Class Action treatment will allow those similarly situated persons to litigate their claims in the manner that is most efficient and economical for the parties and the judicial system.

36. Class Action treatment will allow those similarly situated persons to litigate their claims in the manner that is most efficient and economical for the parties and the judicial system. Plaintiffs are unaware of any difficulties that are likely to be encountered in the management of this action that would preclude maintenance as a Class Action.

37. Plaintiff brings this action on behalf of himself and on behalf of others similarly situated current employees and former employees pursuant to Code of Civil Procedure § 382 and as Class Claims. The Class of employees that Plaintiffs seek to represent includes all individuals who applied for a job with the Defendants:

a. Were asked to disclose their criminal conviction history prior to receiving a conditional offer from the Defendants.

b. Were denied employment on the basis of said criminal conviction history.

For the reasons alleged in this Complaint, this action should be certified as a Class Action.

FIRST CAUSE OF ACTION

(Unlawful Inquiry and Consideration of Plaintiff's Criminal Conviction History in Violation of the California's Fair Chance Act, Government Code § 12952)

(Against Defendant AMAZON.COM SERVICES, LLC.)

38. Plaintiffs re-allege and incorporate by reference the foregoing allegations as though set forth herein.

39. California's Fair Chance Act, Government Code § 12952, provides that "[a]n employer that intends to deny an applicant a position of employment solely or in part because of the applicant's conviction history shall make an individualized assessment of whether the applicant's conviction history has a direct and adverse relationship with the specific duties of the job that justify denying the applicant the position." Gov. Code § 12952(c). In making the assessment, the employer must "consider all the following: (i) The nature and gravity of the offense or conduct. (ii) The time that has passed since the offense or conduct and completion of the sentence. (iii) The nature of the job held or sought." *Id.*

40. Defendant AMAZON is an "employer."

41. Plaintiff is an "applicant" who applied for a position of employment with Defendants.

42. Defendants reviewed Plaintiff's conviction history in the background report and based on the conviction history denied Plaintiff a position of employment solely or in part because of his conviction history.

43. Defendants did not make an individualized assessment of whether Plaintiff's conviction history had a direct and adverse relationship on whether he was qualified for the

position. Defendant did not review the specific duties of the store associate position that Plaintiff applied for that to determine whether it would justify denying him the position.

44. The duties of the delivery driver position included delivering AMAZON orders. Defendants did not consider the nature and gravity of Plaintiff's offense or conduct, the decade that had passed since the offense or conduct and completion of the sentence, or the nature of the job held or sought. It is abundantly clear that Defendants do not provide applicants with a conviction history a "fair chance" at employment.

45. As a result of Defendants' violations, Plaintiff and members of the Fair Chance Class are entitled to recover actual damages, including lost wages, damages for emotional distress, loss of sleep, anxiety, treble damages, statutory damages, punitive damages, and attorney fees and costs. Plaintiff and members of the Fair Chance Class are also entitled to injunctive/preventative relief ordering that, moving forward, Amazon comply with the Fair Chance Act and provide each and every applicant with a conviction history an individualized assessment to fairly determine whether she or he is fit for the position.

PRAYER

1. For damages according to proof, including loss of earnings, deferred compensation, and other employment benefits, and interest thereon;

2. For interest provided by law including, but not limited to, Civil Code § 3291;

3. For general unpaid wages at overtime wage rates and such general and special damages as may be appropriate;

4. For statutory penalties pursuant to California Labor Code §226(e);

5. For statutory wage penalties pursuant to California Labor Code §§ 1770-1773;

6. For restitution of unpaid wages to Plaintiff and prejudgment interest from the day such amounts were due and payable;

7. For reasonable attorneys' fees and costs of suit incurred herein pursuant to California Code of Civil Procedure § 1021.5;

8. For injunctive relief pursuant to California Business & Professions Code

§ 17200, *et seq.*;

10. For costs incurred by Plaintiff, including reasonable attorneys' fees and costs of suit, in obtaining the benefits due to Plaintiffs and for violations of Plaintiffs' civil rights as set forth above; and pursuant to the Labor Code §§ 218.5, 218.6, 226(e), 1194(a), 2699; and California Code of Civil Procedure section 1021.5; and

11. For such other and further relief as the court deems just and proper.

Dated: February 12, 2026

WEST COAST TRIAL LAWYERS, APLC

By: _____

Ronald L. Zambrano
William D. Becker
Attorneys for Plaintiff
MURCHANT WADE, individually and on behalf of others similarly situated

DEMAND FOR JURY TRIAL

Plaintiff hereby respectfully demands a jury trial.

Dated: February 12, 2026

WEST COAST TRIAL LAWYERS, APLC

By: _____

Ronald L. Zambrano
William D. Becker
Attorneys for Plaintiff
MURCHANT WADE, individually and on behalf of others similarly situated

CM-010

ATTORNEY OR PARTY WITHOUT ATTORNEY STATE BAR NUMBER.
NAME: Ronald Zambrano (SBN 255613); William David Becker (SBN 165612)
FIRM NAME: West Coast Trial Lawyers, APLC
STREET ADDRESS: 1147 South Hope Street
CITY: Los Angeles STATE: CA ZIP CODE: 90015
TELEPHONE NO.: 888-888-9285 FAX NO.: 213-927-3701
EMAIL ADDRESS: efilings@westcoasttriallawyers.com
ATTORNEY FOR (name): Murchant Wade

FOR COURT USE ONLY

SUPERIOR COURT OF CALIFORNIA, COUNTY OF FRESNO
STREET ADDRESS: 1130 O Street
MAILING ADDRESS:
CITY AND ZIP CODE: Fresno, CA 93724-0002
BRANCH NAME: B.F. Sisk Courthouse

E-FILED
2/13/2026 8:00 AM
Superior Court of California
County of Fresno
By: T. Espinoza, Deputy

CASE NAME:
Wade, Murchant v. Amazon.com Services, LLC

CIVIL CASE COVER SHEET

[X] **Unlimited** (Amount demanded exceeds $35,000)
[ ] **Limited** (Amount demanded is $35,000 or less)

Complex Case Designation

[ ] Counter [ ] Joinder

Filed with first appearance by defendant (Cal. Rules of Court, rule 3.402)

CASE NUMBER: 26CECG00786

JUDGE:
DEPT.:

Items 1–6 below must be completed (see instructions on page 2).

1. Check **one** box below for the case type that best describes this case:

Auto Tort
- [ ] Auto (22)
- [ ] Uninsured motorist (46)

Asbestos
- [ ] Asbestos (04)

Other PI/PD/WD (Personal Injury/Property Damage/Wrongful Death) Tort
- [ ] Product liability (24)
- [ ] Medical malpractice (45)
- [ ] Other PI/PD/WD (23)

Non-PI/PD/WD (Other) Tort
- [ ] Business tort/Unfair business practice (07)
- [ ] Civil rights (08)
- [ ] Defamation (13)
- [ ] Fraud (16)
- [ ] Intellectual property (19)
- [ ] Professional negligence (25)
- [ ] Other non-PI/PD/WD tort (35)

Employment
- [ ] Wrongful termination (36)
- [X] Other employment (15)

Contract
- [ ] Breach of contract/warranty (06)
- [ ] Rule 3.740 collections (09)
- [ ] Other collections (09)
- [ ] Insurance coverage (18)
- [ ] Other contract (37)

Real Property
- [ ] Eminent domain/Inverse condemnation (14)
- [ ] Wrongful eviction (33)
- [ ] Other real property (26)

Unlawful Detainer
- [ ] Commercial (31)
- [ ] Residential (32)
- [ ] Drugs (38)

Judicial Review
- [ ] Asset forfeiture (05)
- [ ] Petition re arbitration award (11)
- [ ] Writ of mandate (02)
- [ ] Other judicial review (39)

Employment Development Department (EDD)
- [ ] EDD decision review (48)

Provisionally Complex Civil Litigation (Cal. Rules of Court, rules 3.400–3.404)
- [ ] Antitrust/Trade regulation (03)
- [ ] Construction defect (10)
- [ ] Mass tort (40)
- [ ] Securities litigation (28)
- [ ] Environmental/Toxic tort (30)
- [ ] Comprehensive groundwater adjudication (47)
- [ ] Insurance coverage claims arising from the above listed provisionally complex case types (41)

Enforcement of Judgment
- [ ] Enforcement of judgment (20)

Miscellaneous Civil Complaint
- [ ] RICO (27)
- [ ] Other complaint *(not specified above)* (42)

Miscellaneous Civil Petition
- [ ] Partnership and corporate governance (21)
- [ ] Other petition *(not specified above)* (43)

2. Is this case complex under rule 3.400 of the California Rules of Court? [x] Yes [ ] No
   If the case is complex, mark the factors requiring exceptional judicial management:
   a. [ ] Large number of separately represented parties
   b. [ ] Extensive motion practice raising difficult or novel issues that will be time-consuming to resolve
   c. [x] Substantial amount of documentary evidence
   d. [x] Large number of witnesses
   e. [ ] Coordination with related actions pending in one or more courts in other counties, states, or countries, or in a federal court
   f. [x] Substantial postjudgment judicial supervision
3. Remedies sought *(check all that apply):*
   a. [x] monetary
   b. [x] nonmonetary; declaratory or injunctive relief
   c. [x] punitive
4. Number of causes of action *(specify):* One (1)
5. Is this case a class action suit? [x] Yes [ ] No
6. If there are any known related cases, file and serve a notice of related case. *(You may use form CM-015.)*

Date: 02/12/2026

William David Becker, Esq.
(TYPE OR PRINT NAME)

(SIGNATURE OF PARTY OR ATTORNEY FOR PARTY)

NOTICE

- Plaintiff must file this cover sheet with the first paper filed in the action or proceeding (except small claims cases or cases filed under the Probate Code, Family Code, or Welfare and Institutions Code). (Cal. Rules of Court, rule 3.220.) Failure to file may result in sanctions.
- File this cover sheet in addition to any cover sheet required by local court rule.
- If this case is complex under rule 3.400 et seq. of the California Rules of Court, you must serve a copy of this cover sheet on all other parties to the action or proceeding.
- Unless this is a collections case under rule 3.740 of the California Rules of Court or a complex case, this cover sheet will be used for statistical purposes only.

INSTRUCTIONS ON HOW TO COMPLETE THE COVER SHEET

To Plaintiffs and Others Filing First Papers. If you are filing a first paper (for example, a complaint) in a civil case, you must complete and file, along with your first paper, the Civil Case Cover Sheet contained on pages 1 and 2. This information will be used to compile statistics about the types and numbers of cases filed. You must complete items 1 through 6 on the sheet. In item 1, you must check one box for the case type that best describes the case. If the case fits both a general and a more specific type of case listed in item 1, check the more specific one. If the case has multiple causes of action, check the box that best indicates the **primary** cause of action. To assist you in completing the sheet, examples of the cases that belong under each case type in item 1 are provided below. A cover sheet must be filed only with your initial paper. Failure to file a cover sheet with the first paper filed in a civil case may subject a party, its counsel, or both to sanctions under rules 2.30 and 3.220 of the California Rules of Court.

To Parties in Rule 3.740 Collections Cases. A "collections case" under rule 3.740 of the California Rules of Court is defined as an action for recovery of money owed in a sum stated to be certain that is not more than $35,000, exclusive of interest and attorney's fees, arising from a transaction in which property, services, or money was acquired on credit. A collections case does not include an action seeking the following: (1) tort damages, (2) punitive damages, (3) recovery of real property, (4) recovery of personal property, or (5) a prejudgment writ of attachment. The identification of a case as a rule 3.740 collections case on this form means that it will be exempt from the general time-for-service requirements and case management rules, unless a defendant files a responsive pleading. A rule 3.740 collections case will be subject to the requirements for service and obtaining a judgment in rule 3.740.

To Parties in Complex Cases. In complex cases only, parties must also use the Civil Case Cover Sheet to designate whether the case is complex. If a plaintiff believes the case is complex under rule 3.400 of the California Rules of Court, this must be indicated by completing the appropriate boxes in items 1 and 2. If a plaintiff designates a case as complex, the cover sheet must be served with the complaint on all parties to the action. A defendant may file and serve no later than the time of its first appearance a joinder in the plaintiff's designation, a counter-designation that the case is not complex, or, if the plaintiff has made no designation, a designation that the case is complex.

SEE PAGE 3 FOR INFORMATION PURPOSES ONLY.

CASE TYPES AND EXAMPLES

Auto Tort
- Auto (22)–Personal Injury/Property Damage/Wrongful Death
- Uninsured Motorist (46) *(if the case involves an uninsured motorist claim subject to arbitration, check this item instead of Auto)*

Asbestos
- Asbestos (04)
  - Asbestos Property Damage
  - Asbestos Personal Injury/Wrongful Death

Other PI/PD/WD (Personal Injury/Property Damage/Wrongful Death) Tort
- Product Liability *(not asbestos or toxic/environmental)* (24)
- Medical Malpractice (45)
  - Medical Malpractice–Physicians & Surgeons
  - Other Professional Health Care Malpractice
- Other PI/PD/WD (23)
  - Premises Liability (e.g., slip and fall)
  - Intentional Bodily Injury/PD/WD (e.g., assault, vandalism)
  - Intentional Infliction of Emotional Distress
  - Negligent Infliction of Emotional Distress
  - Other PI/PD/WD

Non-PI/PD/WD (Other) Tort
- Business Tort/Unfair Business Practice (07)
- Civil Rights (e.g., discrimination, false arrest) *(not civil harassment)* (08)
- Defamation (e.g., slander, libel) (13)
- Fraud (16)
- Intellectual Property (19)
- Professional Negligence (25)
  - Legal Malpractice
  - Other Professional Malpractice *(not medical or legal)*
- Other Non-PI/PD/WD Tort (35)

Employment
- Wrongful Termination (36)
- Other Employment (15)

Contract
- Breach of Contract/Warranty (06)
  - Breach of Rental/Lease Contract *(not unlawful detainer or wrongful eviction)*
  - Contract/Warranty Breach–Seller Plaintiff *(not fraud or negligence)*
  - Negligent Breach of Contract/Warranty
  - Other Breach of Contract/Warranty
- Collections (e.g., money owed, open book accounts) (09)
  - Collections Case–Seller Plaintiff
- Other Promissory Note/Collections Case
- Insurance Coverage *(not provisionally complex)* (18)
  - Auto Subrogation
  - Other Coverage
- Other Contract (37)
  - Contractual Fraud
  - Other Contract Dispute

Real Property
- Eminent Domain/Inverse Condemnation (14)
- Wrongful Eviction (33)
- Other Real Property (e.g., quiet title) (26)
  - Writ of Possession of Real Property
  - Mortgage Foreclosure
  - Quiet Title
  - Other Real Property *(not eminent domain, landlord-tenant, or foreclosure)*

Unlawful Detainer
- Commercial (31)
- Residential (32)
- Drugs (38) *(if the case involves illegal drugs, check this item; otherwise, report as Commercial or Residential)*

Judicial Review
- Asset Forfeiture (05)
- Petition re Arbitration Award (11)
- Writ of Mandate (02)
  - Writ–Administrative Mandamus
  - Writ–Mandamus on Limited Court Case Matter
  - Writ–Other Limited Court Case Review
- Other Judicial Review (39)
  - Review of Health Officer Order
  - Notice of Appeal–Labor Commissioner Appeals

Employment Development Department (EDD)
- EDD Decision Review (48) *(if the case involves an Employment Development Department decision, check this item instead of Wrongful Termination or Other Employment)*

Provisionally Complex Civil Litigation (Cal. Rules of Court, rules 3.400–3.403)
- Antitrust/Trade Regulation (03)
- Construction Defect (10)
- Claims Involving Mass Tort (40)
- Securities Litigation (28)
- Environmental/Toxic Tort (30)
- Comprehensive Groundwater Adjudication (47)
- Insurance Coverage Claims *(arising from provisionally complex case type listed above)* (41)

Enforcement of Judgment
- Enforcement of Judgment (20)
  - Abstract of Judgment (Out of County)
  - Confession of Judgment *(non-domestic relations)*
  - Sister-State Judgment
  - Administrative Agency Award *(not unpaid taxes)*
  - Petition/Certification of Entry of Judgment on Unpaid Taxes
  - Other Enforcement of Judgment Case

Miscellaneous Civil Complaint
- RICO (27)
- Other Complaint *(not specified above)* (42)
  - Declaratory Relief Only Injunctive Relief Only *(non-harassment)*
  - Mechanic's Lien
  - Other Commercial Complaint Case *(non-tort/non-complex)*
  - Other Civil Complaint *(non-tort/non-complex)*

Miscellaneous Civil Petition
- Partnership and Corporate Governance (21)
- Other Petition *(not specified above)* (43)
  - Civil Harassment
  - Workplace Violence
  - Elder/Dependent Adult Abuse
  - Election Contest
  - Petition for Name Change
  - Petition for Relief From Late Claim
  - Other Civil Petition

For your protection and privacy, please press the Clear button after you have printed the form.

Print Save Clear

EXHIBIT 2

SUPERIOR COURT OF CALIFORNIA • COUNTY OF FRESNO **Civil Unlimited Department,** Central Division **1130 O Street** **Fresno, California 93721** **(559) 457-1900**	*FOR COURT USE ONLY* 2/23/2026
TITLE OF CASE: **Murchant Wade, an individual, et al., and on behalf of all similarly vs. Amazon.com Services, LLC., a Delaware Limited Liability Company/COMPLEX/CLASSACTION**	
NOTICE OF CASE MANAGEMENT CONFERENCE AND ASSIGNMENT OF JUDGE FOR ALL PURPOSES	CASE NUMBER: **26CECG00786**

To All Parties and their Attorneys of Record:

William D. Becker
West Coast Trial Lawyers, APLC
1147 South Hope Street
Los Angeles CA 90015

This case has been assigned to **Kristi Culver Kapetan,** Judge for **all purposes**.
All future hearings will be scheduled before this assigned judge, in **Department 502**

You are required to appear at a Case Management Conference on **06/23/2026** at **3:28 PM** in **Department 502** of the Court located at **2317 Tuolumne Street, Fresno, California.**

You must comply with the requirements set forth in Chapter 2 of the Superior Court of Fresno County, Local Rules. You must file a Case Management Conference Statement at least 15 calendar days before the conference (Cal. Rules of Court, rule 3.725(a).)

Failure to appear at the conference or to comply with these rules may result in imposition of sanctions, waiver of jury trial, or other adverse consequences.

Defendants: Appearance at the Case Management Conference does not excuse you from having to file your response in proper legal form within 30 days after the summons is served on you. Failure to file a response in a timely manner may result in adverse consequences, including a default judgment being entered against you.
If you do not have an attorney and wish to retain one, there are attorney referral services, legal aid offices, and private practice attorneys in the Fresno area (most may be found on the internet or the local phone book).

An Order Regarding Remote Appearance (RA-020) is not required for Case Management Conferences unless so ordered by the court. For any other appearances, a party must submit a request for remote appearance to be reviewed.

DECLARATION

I declare under penalty of perjury under the laws of the State of California that I gave a copy of the **Notice of Case Management and Assignment of Judge for All Purposes** to the person who presented this case for filing.

Date: **2/23/2026** Clerk, by **Trinidad Espinoza** , Deputy

JS 44 (Rev. 04/21)

CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. *(SEE INSTRUCTIONS ON NEXT PAGE OF THIS FORM.)*

I. (a) PLAINTIFFS

Murchant Wade

(b) County of Residence of First Listed Plaintiff Fresno

(EXCEPT IN U.S. PLAINTIFF CASES)

WEST COAST TRIAL LAYWERS, APLC
Neama Rahmani, SBN 223819; Ronald L. Zambrano, SBN 255613; William D. Becker, SBN 165612
1147 South Hope Street, Los Angeles, CA 90015 | Tel: 213.927.3700
efilings@westcoasttriallawyers.com; ron@westcoasttriallawyers.com; williamb@westcoasttriallawyers.com

DEFENDANTS

Amazon.com Services LLC

County of Residence of First Listed Defendant

(IN U.S. PLAINTIFF CASES ONLY)

NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE TRACT OF LAND INVOLVED.

Attorneys *(If Known)*

MORGAN, LEWIS & BOCKIUS LLP
Andrew P. Frederick, SBN 284382; Dominic D. Sbrocca, SBN 359085
1400 Page Mill Road, Palo Alto, CA 94304 | Tel: 1.650.843.4000;
andrew.frederick@morganlewis.com; dominic.sbrocca@morganlewis.com

II. BASIS OF JURISDICTION *(Place an "X" in One Box Only)*

- ☐ 1 U.S. Government Plaintiff
- ☐ 3 Federal Question *(U.S. Government Not a Party)*
- ☐ 2 U.S. Government Defendant
- ☒ 4 Diversity *(Indicate Citizenship of Parties in Item III)*

III. CITIZENSHIP OF PRINCIPAL PARTIES *(Place an "X" in One Box for Plaintiff and One Box for Defendant)*

(For Diversity Cases Only)

	PTF	DEF		PTF	DEF
Citizen of This State	☒ 1	☐ 1	Incorporated *or* Principal Place of Business In This State	☐ 4	☐ 4
Citizen of Another State	☐ 2	☐ 2	Incorporated *and* Principal Place of Business In Another State	☐ 5	☒ 5
Citizen or Subject of a Foreign Country	☐ 3	☐ 3	Foreign Nation	☐ 6	☐ 6

IV. NATURE OF SUIT *(Place an "X" in One Box Only)*

Click here for: Nature of Suit Code Descriptions.

CONTRACT
- ☐ 110 Insurance
- ☐ 120 Marine
- ☐ 130 Miller Act
- ☐ 140 Negotiable Instrument
- ☐ 150 Recovery of Overpayment & Enforcement of Judgment
- ☐ 151 Medicare Act
- ☐ 152 Recovery of Defaulted Student Loans (Excludes Veterans)
- ☐ 153 Recovery of Overpayment of Veteran's Benefits
- ☐ 160 Stockholders' Suits
- ☐ 190 Other Contract
- ☐ 195 Contract Product Liability
- ☐ 196 Franchise

TORTS

PERSONAL INJURY
- ☐ 310 Airplane
- ☐ 315 Airplane Product Liability
- ☐ 320 Assault, Libel & Slander
- ☐ 330 Federal Employers' Liability
- ☐ 340 Marine
- ☐ 345 Marine Product Liability
- ☐ 350 Motor Vehicle
- ☐ 355 Motor Vehicle Product Liability
- ☐ 360 Other Personal Injury
- ☐ 362 Personal Injury - Medical Malpractice

PERSONAL INJURY
- ☐ 365 Personal Injury - Product Liability
- ☐ 367 Health Care/ Pharmaceutical Personal Injury Product Liability
- ☐ 368 Asbestos Personal Injury Product Liability

PERSONAL PROPERTY
- ☐ 370 Other Fraud
- ☐ 371 Truth in Lending
- ☐ 380 Other Personal Property Damage
- ☐ 385 Property Damage Product Liability

FORFEITURE/PENALTY
- ☐ 625 Drug Related Seizure of Property 21 USC 881
- ☐ 690 Other

LABOR
- ☐ 710 Fair Labor Standards Act
- ☐ 720 Labor/Management Relations
- ☐ 740 Railway Labor Act
- ☐ 751 Family and Medical Leave Act
- ☐ 790 Other Labor Litigation
- ☐ 791 Employee Retirement Income Security Act

IMMIGRATION
- ☐ 462 Naturalization Application
- ☐ 465 Other Immigration Actions

BANKRUPTCY
- ☐ 422 Appeal 28 USC 158
- ☐ 423 Withdrawal 28 USC 157

INTELLECTUAL PROPERTY RIGHTS
- ☐ 820 Copyrights
- ☐ 830 Patent
- ☐ 835 Patent - Abbreviated New Drug Application
- ☐ 840 Trademark
- ☐ 880 Defend Trade Secrets Act of 2016

SOCIAL SECURITY
- ☐ 861 HIA (1395ff)
- ☐ 862 Black Lung (923)
- ☐ 863 DIWC/DIWW (405(g))
- ☐ 864 SSID Title XVI
- ☐ 865 RSI (405(g))

FEDERAL TAX SUITS
- ☐ 870 Taxes (U.S. Plaintiff or Defendant)
- ☐ 871 IRS—Third Party 26 USC 7609

OTHER STATUTES
- ☐ 375 False Claims Act
- ☐ 376 Qui Tam (31 USC 3729(a))
- ☐ 400 State Reapportionment
- ☐ 410 Antitrust
- ☐ 430 Banks and Banking
- ☐ 450 Commerce
- ☐ 460 Deportation
- ☐ 470 Racketeer Influenced and Corrupt Organizations
- ☐ 480 Consumer Credit (15 USC 1681 or 1692)
- ☐ 485 Telephone Consumer Protection Act
- ☐ 490 Cable/Sat TV
- ☐ 850 Securities/Commodities/ Exchange
- ☐ 890 Other Statutory Actions
- ☐ 891 Agricultural Acts
- ☐ 893 Environmental Matters
- ☐ 895 Freedom of Information Act
- ☐ 896 Arbitration
- ☐ 899 Administrative Procedure Act/Review or Appeal of Agency Decision
- ☐ 950 Constitutionality of State Statutes

REAL PROPERTY
- ☐ 210 Land Condemnation
- ☐ 220 Foreclosure
- ☐ 230 Rent Lease & Ejectment
- ☐ 240 Torts to Land
- ☐ 245 Tort Product Liability
- ☐ 290 All Other Real Property

CIVIL RIGHTS
- ☐ 440 Other Civil Rights
- ☐ 441 Voting
- ☒ 442 Employment
- ☐ 443 Housing/ Accommodations
- ☐ 445 Amer. w/Disabilities - Employment
- ☐ 446 Amer. w/Disabilities - Other
- ☐ 448 Education

PRISONER PETITIONS

Habeas Corpus:
- ☐ 463 Alien Detainee
- ☐ 510 Motions to Vacate Sentence
- ☐ 530 General
- ☐ 535 Death Penalty

Other:
- ☐ 540 Mandamus & Other
- ☐ 550 Civil Rights
- ☐ 555 Prison Condition
- ☐ 560 Civil Detainee - Conditions of Confinement

V. ORIGIN *(Place an "X" in One Box Only)*

- ☐ 1 Original Proceeding
- ☒ 2 Removed from State Court
- ☐ 3 Remanded from Appellate Court
- ☐ 4 Reinstated or Reopened
- ☐ 5 Transferred from Another District *(specify)*
- ☐ 6 Multidistrict Litigation - Transfer
- ☐ 8 Multidistrict Litigation - Direct File

VI. CAUSE OF ACTION

Cite the U.S. Civil Statute under which you are filing ***(Do not cite jurisdictional statutes unless diversity)***:
28 U,S,C. §§ 1332, 1441, and 1446

Brief description of cause: Plaintiff alleges that he, and members of a putative class, were unlawfully denied employment under the California Fair Chance Act based on their criminal histories.

VII. REQUESTED IN COMPLAINT:

☐ CHECK IF THIS IS A **CLASS ACTION** UNDER RULE 23, F.R.Cv.P.

DEMAND $

CHECK YES only if demanded in complaint:

JURY DEMAND: ☒ Yes ☐ No

VIII. RELATED CASE(S) IF ANY

(See instructions): JUDGE _____ DOCKET NUMBER _____

DATE
March 27, 2026

SIGNATURE OF ATTORNEY OF RECORD
/s/ Andrew P. Frederick

FOR OFFICE USE ONLY

RECEIPT # _____ AMOUNT _____ APPLYING IFP _____ JUDGE _____ MAG. JUDGE _____

INSTRUCTIONS FOR ATTORNEYS COMPLETING CIVIL COVER SHEET FORM JS 44

Authority For Civil Cover Sheet

The JS 44 civil cover sheet and the information contained herein neither replaces nor supplements the filings and service of pleading or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. Consequently, a civil cover sheet is submitted to the Clerk of Court for each civil complaint filed. The attorney filing a case should complete the form as follows:

I.(a) Plaintiffs-Defendants. Enter names (last, first, middle initial) of plaintiff and defendant. If the plaintiff or defendant is a government agency, use only the full name or standard abbreviations. If the plaintiff or defendant is an official within a government agency, identify first the agency and then the official, giving both name and title.

(b) County of Residence. For each civil case filed, except U.S. plaintiff cases, enter the name of the county where the first listed plaintiff resides at the time of filing. In U.S. plaintiff cases, enter the name of the county in which the first listed defendant resides at the time of filing. (NOTE: In land condemnation cases, the county of residence of the "defendant" is the location of the tract of land involved.)

(c) Attorneys. Enter the firm name, address, telephone number, and attorney of record. If there are several attorneys, list them on an attachment, noting in this section "(see attachment)".

II. Jurisdiction. The basis of jurisdiction is set forth under Rule 8(a), F.R.Cv.P., which requires that jurisdictions be shown in pleadings. Place an "X" in one of the boxes. If there is more than one basis of jurisdiction, precedence is given in the order shown below.
United States plaintiff. (1) Jurisdiction based on 28 U.S.C. 1345 and 1348. Suits by agencies and officers of the United States are included here.
United States defendant. (2) When the plaintiff is suing the United States, its officers or agencies, place an "X" in this box.
Federal question. (3) This refers to suits under 28 U.S.C. 1331, where jurisdiction arises under the Constitution of the United States, an amendment to the Constitution, an act of Congress or a treaty of the United States. In cases where the U.S. is a party, the U.S. plaintiff or defendant code takes precedence, and box 1 or 2 should be marked.
Diversity of citizenship. (4) This refers to suits under 28 U.S.C. 1332, where parties are citizens of different states. When Box 4 is checked, the citizenship of the different parties must be checked. (See Section III below**; NOTE: federal question actions take precedence over diversity cases.**)

III. Residence (citizenship) of Principal Parties. This section of the JS 44 is to be completed if diversity of citizenship was indicated above. Mark this section for each principal party.

IV. Nature of Suit. Place an "X" in the appropriate box. If there are multiple nature of suit codes associated with the case, pick the nature of suit code that is most applicable. Click here for: Nature of Suit Code Descriptions.

V. Origin. Place an "X" in one of the seven boxes.
Original Proceedings. (1) Cases which originate in the United States district courts.
Removed from State Court. (2) Proceedings initiated in state courts may be removed to the district courts under Title 28 U.S.C., Section 1441.
Remanded from Appellate Court. (3) Check this box for cases remanded to the district court for further action. Use the date of remand as the filing date.
Reinstated or Reopened. (4) Check this box for cases reinstated or reopened in the district court. Use the reopening date as the filing date.
Transferred from Another District. (5) For cases transferred under Title 28 U.S.C. Section 1404(a). Do not use this for within district transfers or multidistrict litigation transfers.
Multidistrict Litigation – Transfer. (6) Check this box when a multidistrict case is transferred into the district under authority of Title 28 U.S.C. Section 1407.
Multidistrict Litigation – Direct File. (8) Check this box when a multidistrict case is filed in the same district as the Master MDL docket.
PLEASE NOTE THAT THERE IS NOT AN ORIGIN CODE 7. Origin Code 7 was used for historical records and is no longer relevant due to changes in statute.

VI. Cause of Action. Report the civil statute directly related to the cause of action and give a brief description of the cause. **Do not cite jurisdictional statutes unless diversity.** Example: U.S. Civil Statute: 47 USC 553 Brief Description: Unauthorized reception of cable service.

VII. Requested in Complaint. Class Action. Place an "X" in this box if you are filing a class action under Rule 23, F.R.Cv.P.
Demand. In this space enter the actual dollar amount being demanded or indicate other demand, such as a preliminary injunction.
Jury Demand. Check the appropriate box to indicate whether or not a jury is being demanded.

VIII. Related Cases. This section of the JS 44 is used to reference related pending cases, if any. If there are related pending cases, insert the docket numbers and the corresponding judge names for such cases.

Date and Attorney Signature. Date and sign the civil cover sheet.

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Attorneys for Defendant
AMAZON.COM SERVICES LLC

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

MURCHANT WADE, an individual, et al., and on behalf of all similarly situated employees of Defendants in the State of California

Plaintiffs,

vs.

AMAZON.COM SERVICES LLC, a Delaware Limited Liability Company; and DOES 1 through 50.

Defendants.

Case No. _____

[Fresno Superior Court Case No. 26CECG00786]

AMAZON'S CORPORATE DISCLOSURE STATEMENT

[28 U.S.C. §§ 1332, 1441, 1446]

TO THE UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF CALIFORNIA AND TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

Pursuant to Federal Rule of Civil Procedure 7.1, Defendant Amazon.com Services LLC ("Amazon"), through its undersigned counsel of record, certifies the following:

1. Amazon.com Services LLC is a citizen of Washington and Delaware, and is a wholly owned subsidiary of parent company Amazon.com, Inc. Amazon.com, Inc. has no parent company, and no other publicly held company owns 10% or more of Amazon.com, Inc's stock.

2. Amazon.com Sales, Inc. is a citizen of Washington and Delaware and is the only member of Amazon.com Services LLC. Amazon.com Sales, Inc. is a wholly owned subsidiary of parent company Amazon.com, Inc. Amazon.com, Inc. has no parent company, and no other publicly held company owns 10% of more of Amazon.com, Inc.'s stock.

Counsel for Amazon are currently unaware of any other entities that must be disclosed pursuant to Federal Rule of Civil Procedure 7.1.

Dated: March 27, 2026

MORGAN, LEWIS & BOCKIUS LLP

By */s/ Andrew P. Frederick*
Andrew P. Frederick
Dominic Sbrocca

Attorneys for Defendant
AMAZON.COM SERVICES LLC

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Attorneys for Defendant
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UNITED STATES DISTRICT COURT

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Plaintiffs,

vs.

AMAZON.COM SERVICES LLC, a Delaware Limited Liability Company; and DOES 1 through 50.

Defendants.

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PROOF OF SERVICE

PROOF OF SERVICE BY OVERNIGHT DELIVERY

I am a citizen of the United States and employed in Santa Clara County, California. I am over the age of eighteen years and not a party to the within-entitled action. My business address is 1400 Page Mill Road, Palo Alto, CA 94304.

On March 27, 2026, I deposited with Federal Express, a true and correct copy of the within document(s):

- **DEFENDANT AMAZON.COM SERVICES LLC'S NOTICE OF REMOVAL OF COMPLAINT;**
- **CIVIL COVER SHEET;**
- **AMAZON'S CORPORATE DISCLOSURE STATEMENT;**
- **PROOF OF SERVICE**

in a sealed envelope, addressed as follows:

Neama Rahmani, Esq.
Ronald L. Zambrano, Esq.
William D. Becker, Esq.
WEST COAST TRIAL LAWYERS, APLC
1147 South Hope Street
Los Angeles, CA 90015
Tel: 213.927.3700
efilings@westcoasttriallawyers.com
ron@westcoasttriallawyers.com
williamb@westcoasttriallawyers.com

Attorneys for Plaintiff MURCHANT WADE

Following ordinary business practices, the envelope was sealed and placed for collection by Federal Express on this date, and would, in the ordinary course of business, be retrieved by Federal Express for overnight delivery on this date.

Executed on March 27, 2026, at Palo Alto, California.

I declare under penalty of perjury under the laws of the State of California that the above is true and correct.

Eveline Schmid